



PURCHASE AND SALE CONTRACT FOR RESIDENCE IN A HOMEOWNER'S ASSOCIATION (HOA) OR IS A CONDOMINIUM

WARNING: THIS CONTRACT FORM CANNOT BE USED IF THIS TRANSACTION IS COVERED BY THE HOME EQUITY THEFT PREVENTION ACT (Section 265-a of New York Real Property Law).

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OR BY ANY REALTOR® ASSOCIATION OR MULTIPLE LISTING SERVICE AND ARE FULLY NEGOTIABLE.

When signed, this document becomes a binding contract. Buyer and seller should consult their own attorney. Buyer acknowledges that information contained in the Multiple Listing Service is not guaranteed and should be independently verified before signing this Contract.

TO: Estate of Adele Elizabeth Shepard and _____ ("the Seller")

FROM: Olivia Pitton and _____ ("the Buyer")

Seller agrees to sell, and Buyer agrees to purchase, the real property described below on the terms stated in this Purchase and Sale Contract for Residence in a Homeowner's Association or is a Condominium, as well as the Addenda referenced herein and attached hereto (collectively, the "Contract"). Seller and Buyer may each be referred to individually as a "Party" and collectively as the "Parties".

1. PROPERTY.

(A) Description.

Property known as 15 Braintree Crescent
in the County of Monroe ☒ Town ☐ City ☐ Village of Penfield, State of New York, Zip 14526 also known as Tax No. 264200-109-050-0003-036-000-000B.
☐ Condominium: Name _____ Bldg. No. _____ Unit No. _____ % Interest _____.
☒ Townhouse/Residence w/HOA: Name Beacon Hills Lot No. _____ Dimensions 41 X 58.
Property Includes: Limited use common elements (if condominium) not accessible from unit:
☐ Dock Space # _____ Fee, if any \$ _____ ☐ Parking Space # _____
☐ Garage # _____ ☐ Storage Bin # _____
☐ Other _____

(B) Common Charges, Services and Amenities. Buyer agrees to pay a ☒ Monthly fee of \$ 328 ☐ Quarterly fee of \$ _____ ☐ Annual fee of \$ _____, (the "Common Charges") currently required for the items and services checked below.

Buyer understands that these fees may change and that Buyer shall be responsible for any increase in the Common Charges. Seller represents to Buyer as of the date of acceptance that Seller has not received any written notice of a proposed increase in Common Charges, which representation shall survive Closing (as hereinafter defined in Paragraph 3(A), below).

☐ Clubhouse	☒ Maintenance of Exterior of Buildings	☒ Reserves
☒ Common Area Snow Removal	☐ Management Fee	☐ Security
☒ Common Area Taxes	☒ Master Hazard Insurance	☐ Tennis
☐ Deck Maintenance	☐ Playground	☒ Trash Collection
☐ Exercise	☐ Pool	☒ Water/Sewer
☒ Maintenance of Common Elements and Common Areas		
☒ Other <u>Snow Removal</u>		

(C) Current Special Assessments. Seller represents to Buyer that there are total special assessments in the amount of \$ 0 ("Current Special Assessment") as of the date of acceptance owing to the Condominium or Association Board for Beacon Hills, which representation shall survive Closing. Seller represents to Buyer as of the date of acceptance that there are no other unpaid special assessments owing to the Condominium or Association Board which are or may become liens against the Property and that Seller has not received written notice of any other special assessments, or proposed capital improvements, or construction by the Condominium or Association Board, which representations shall survive Closing. The Current Special Assessments shall be the responsibility of, and paid for by:

- ☒ 1. Seller, by final payment to the Condominium or Association Board prior to Closing.
☐ 2. Buyer.
☐ 3. Other _____

(D) Post-Contract Assessments. If a(n) special assessment, capital improvement, other construction, or increase in Common Charges is imposed or proposed by the Condominium or Association Board at any time after the date of acceptance (collectively, "Post-Contract Assessment") for which Post-Contract Assessment Seller has not received any written notice prior to acceptance, then Buyer agrees and acknowledges to Seller that Buyer will not have the right to cancel this Contract by virtue of such Post-Contract Assessment and that the Post-Contract Assessment shall be the responsibility of, and paid by, the Buyer. Seller shall provide Buyer with prompt written notice of any Post-Contract Assessment prior to Closing.

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Buyer's Initials

(E) **Restrictions.** Property is subject to the following restrictions: ☒ Exterior Alterations ☐ Parking ☐ Pets ☐ Rental
☐ Other _____.

(F) **Other Items Included in Purchase.** Unless a part of the common elements, any of the following items and all related equipment and accessories for such items now in or on the Property are included in this purchase and sale, which Seller represents are owned by Seller: All awnings, carbon monoxide detectors, central vacuum system, curtain and traverse rods, electric garage door opener and remote control devices, exhaust fans, fences, fireplace screens and enclosures, flowers, garbage disposal, heating systems (except as provided in Paragraph 6G), hoods, intercom equipment, lighting fixtures, ceiling fans, mail box, plumbing systems, septic and private water systems, satellite dishes, screens, security systems and security codes, sheds, shrubs, smoke detectors, storm doors, storm windows, sump pumps, swimming pool, trees, underground pet containment fencing with transmitter and collar(s), wall-to-wall carpeting and runners, water softeners, window boxes, window blinds and shades, and the following, if built-in: air conditioning (except window units), humidifier, TV antennae, TV wall mount, basketball apparatus, cabinets, dishwashers, microwave ovens, mirrors, outdoor playsets, ovens, shelving, stoves, and trash compactors. Buyer agrees to accept these items in their present condition. Other items to be included in the purchase and sale are:
Dishwasher, Disposal, Dryer, Oven/Range Electric, Range Hood Exhaust Fan, Refrigerator, Washer

Items excluded are: _____.

Seller represents that Seller has good title to all of the above items to be transferred to Buyer and will deliver a Bill of Sale for the above items at Closing.

☒ Seller shall cause any heating, plumbing, air conditioning, electrical systems and included appliances to be in working order at the time of Closing, except for _____ and common elements.
The prior sentence shall not be construed as a warranty or guarantee after Closing.

2. SELLER'S REPRESENTATIONS & COVENANTS. Seller represents to Buyer as of acceptance and Closing that:

- (A) Seller has made no interior or exterior alterations or improvements to the unit/Property except with the consent or approval of the Condominium or Association Board if required and in full compliance with the Declaration, By-Laws and Rules and Regulations of the Association.
- (B) There are no unpaid common charges or other items owed to the Condominium or the Association Board which are or may become liens against the Property, or if there are any such unpaid common charges or other items owed to the Condominium or Association Board, then Seller shall pay all such unpaid common charges or other items on or before Closing, except as otherwise provided in Paragraphs 1(C) and 1(D) above.
- (C) Seller has notified the Condominium or Association Board of this sale or will do so promptly after acceptance if required by the Declaration, By-Laws or Rules and Regulations.
- (D) Seller has not received any written notice of any change or proposed change to the Declaration or By-Laws, and Seller will give Buyer prompt notice of any written notice received by Seller of any change or proposed change to the Declaration or By-Laws.
- (E) To Seller's actual knowledge, there is no pending litigation involving the Condominium or Homeowner's Association.
- (F) Seller represents to Buyer that: (i) Seller owns the Property and has the power and authority to sell it, (ii) Seller is not in bankruptcy and (iii) Seller has sufficient funds (including the proceeds from this sale) to close this transaction and pay Seller's closing expenses.

3. PURCHASE PRICE, ADJUSTMENTS, CREDITS AND TAXES.

- (A) **Price and Payment.** The purchase price (the "Purchase Price"), payable in U.S. Dollars as follows, is _____ \$ 179,900
- (1) **Deposit.** The following deposit in the form of ☐ cash ☒ personal check ☐ official bank check or ☐ wire transfer (the "Deposit") _____ \$ 50,000
- (2) **Seller Concession** At Closing, Seller shall pay the sum of ☐ _____ % of the Purchase Price or ☐ \$ _____ ("**0**" if left blank) toward lender approved costs and prepaid items (the "Seller Concession").

Adjusted Balance Due. Upon delivery of the deed ("Closing"), the Purchase Price less (1) the Deposit and (2) Seller Concession, subject to any closing adjustments and credits as provided in this Contract, shall be paid in cash, official bank draft or certified check at Closing (some or all of which may be paid with the proceeds of a new loan).

- (B) **Deposit; Default.** Buyer ☐ has delivered ☒ will deliver within two (2) calendar days of acceptance the Deposit set forth in Paragraph 3(A)(1) payable to and held in escrow by REMAX Realty Group (the "Escrow Agent") which will be deposited at ESL (the "Bank") and which Deposit is to become part of the Purchase Price or returned if not accepted or if this Contract thereafter fails to close for any reason not the fault of the Buyer. If Buyer fails to complete Buyer's part of this Contract, Seller is allowed to retain the Deposit to be applied to Seller's damages and may pursue other available rights and remedies Seller has against the Buyer. If Seller fails to complete Seller's part of this Contract, Buyer's Deposit will be returned to Buyer, and Buyer may pursue other available rights and remedies Buyer has against Seller.

- (C) **Seller Concession.** If the Seller Concession set forth in Paragraph 3(A)(2) exceeds the lender approved costs and prepaid items, the Seller Concession shall be reduced to an amount equal to the lender approved costs and prepaid items.

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(D) Transfer Tax, Recording Costs, Mortgage Tax, and Closing Adjustments. Seller will pay the real property transfer tax and special additional mortgage recording tax, if applicable. Seller will also pay for the recording/filing of any documents necessary to convey record marketable title, including, but not limited to death certificates, bankruptcy court orders, and affidavits (i.e. Alive and Well, Bankruptcy, Estate Tax, Heirship, Judgment, etc.). Buyer will pay for recording the deed and mortgage, mortgage tax and mortgage assumption charges, if any. Excluding delinquent items, interest and penalties, the following will be prorated and adjusted between Seller and Buyer as of the Closing Date (as hereinafter defined below in Paragraph 7(B)): taxes, other assessments and municipal charges computed on a fiscal year basis; rent; common charges or assessments; fuel oil; propane; water, pure water and sewer charges. FHA mortgage insurance shall be adjusted in accordance with the FHA formulae. There shall be no adjustment for any capital reserves held by the Association or Condominium.

If the purchase price is \$1,000,000.00 or more, then the additional transfer tax identified in Section 1402-a of the Tax Law shall be paid by the ☐ Seller ☐ Buyer (check one).

4. CONTINGENCIES. This Contract is subject to the following contingencies. If any of these contingencies are not satisfied by written notice to the other Party by the dates specified (collectively, the "Contingency Deadline Dates"), then either Buyer or Seller may cancel this contract (the "Contract") by written notice to the other, provided that the applicable contingency has not otherwise been satisfied by a Party after the applicable Contingency Deadline Date by written notice to the other Party and prior to any date on which this Contract is cancelled. (Check and complete applicable provisions.)

(A) Financing.

☐ (1) **Mortgage Commitment.** The Contract is subject to Buyer obtaining and accepting a written _____ mortgage loan commitment in an amount not to exceed ☐ _____ % of the purchase price or ☐ \$ _____ at an interest rate not to exceed _____ %, for a term of _____ years (the "Commitment"). Buyer shall immediately apply for this loan and shall have until _____, 20____ to obtain and accept a Commitment. The conditions of any such Commitment shall not be deemed contingencies of this Contract but shall be the sole responsibility of Buyer; however, a commitment that is conditioned on an appraisal of the Property shall not be deemed a "Commitment" hereunder. If the Commitment requires repairs, replacements, or improvements, Seller shall furnish the requisite materials and have the work done before Closing, at Seller's expense. However, if the cost of doing so exceeds \$ _____, Seller shall not be obligated to furnish such materials and have such work done, and Buyer will be allowed either to receive a credit at Closing for the above amount and incur any necessary expenses to comply with the Commitment requirements, or to cancel this Contract by written notice to Seller, and any Deposit shall be returned to Buyer. Acceptance of a Commitment by Buyer shall be deemed a waiver and satisfaction of this contingency.

☒ (2) **Cash Transaction.** This Contract is subject to Buyer providing Seller with written proof that Buyer has immediately available U.S. funds in the amount of the Purchase Price by February 24, 2026.

☐ (3) **Additional Financing.**

☐ (B) **Association Documents Approval.** Seller shall provide at Seller's expense all of the documents set forth in letters a), b) and c) of Paragraph 8(A)(3) below (collectively, the "Association Documents") to Buyer within ten (10) calendar days of acceptance. This offer is contingent upon Buyer's approval of the Association Documents within ten (10) calendar days of Buyer's receipt of the Association Documents.

☐ (C) **Sale and Transfer of Title.** This Contract is subject to the sale and transfer of title of Buyer's existing property pursuant to the terms and conditions of the Sale and Transfer of Title Contingency Addendum.

☐ (D) **Inspection of Property.** This Contract is subject to inspection(s) of the Property pursuant to the terms and conditions of the Property Inspection Addendum.

☐ (E) **Building Code Compliance.** This Contract is subject to Seller delivering to Buyer, at Seller's expense, all permits, certificates of compliance and/or other comparable proof of compliance with building codes and ordinances (the "Certificates") on file with the applicable municipality within ten (10) calendar days of acceptance. The Buyer shall have five (5) calendar days from Buyer's receipt of the Certificates or receipt of written notice that no Certificates exist to deliver to Seller a written demand that Seller obtain specific/certain Certificates (the "Demand"). If the Demand is not timely delivered to Buyer, this Building Code Compliance Contingency is deemed waived by Buyer. Upon Seller's receipt of Buyer's Demand, Seller shall have five (5) calendar days to (i) provide the Certificates specifically demanded by Buyer, or (ii) enter into a written agreement with the Buyer addressing the Certificates to be provided to Buyer.

☐ (F) **Other Contingency(s).**

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5. APPROVAL OF ATTORNEY(S). This Contract is subject to the written approval of attorneys for Buyer and Seller within 3 days (no less than three (3) days, *excluding Saturdays, Sundays and public holidays* and "3" if left blank), from date of acceptance (the "Approval Period"). If either attorney (i) does not provide written approval within the Approval Period or (ii) makes written objection to or conditionally approves (collectively, the "Objections") the Contract within the Approval Period and the Objections are not cured by written approval by both attorneys and all of the Parties within the Approval Period, then (A) either Buyer or Seller may cancel this Contract by written notice to the other and any Deposit shall be returned to the Buyer or (B) the approving attorney may notify the other party (with a copy to any attorney listed below) in writing that no approval has been received and that the noticed Party has two(2) calendar days, *excluding Saturdays, Sundays and public holidays*, from receipt of the notice ("Grace Period") to provide written attorney approval or disapproval of the Contract. The approving attorney shall provide to the noticed Party (with a copy to any attorney listed below) a copy of the approving attorney's approval letter, whether conditional or not, along with the written notice of the Grace Period. If written attorney approval or disapproval is not provided to the approving attorney within the Grace Period, then this Approval of Attorney(s) contingency shall be deemed waived by the noticed Party and any conditions in the approving attorney's approval letter shall be deemed accepted by the noticed Party.

6. CONDITION OF PROPERTY.

(A) Property Condition Disclosure Statement.

- ☐ (1) Seller has provided Buyer with a Property Condition Disclosure Statement.
☒ (2) Is not applicable as the property is exempt.

(B) Representations Pertaining to the Home Equity Theft Prevention Act ("HETPA"). (check applicable box(es))

- ☒ (1) **Buyer.** Buyer represents to Seller as of the date of acceptance that Buyer is acquiring the Property to use the Property as Buyer's primary residence and that Buyer will occupy the Property as Buyer's primary residence.
☒ (2) **Seller.** To Seller's actual knowledge, Seller represents to Buyer as of the date of acceptance that there is no active *Lis Pendens* filed against the Property to foreclose a mortgage pursuant to Article 13 of the New York Real Property Actions and Proceedings Law, the Property is not on an active Property tax lien sale list, and Seller is not two (2) months or more behind in Seller's mortgage payments with respect to the Property.

(C) Certificate of Occupancy. If applicable laws require, Seller shall apply for a Certificate of Occupancy for the Property no less than ten (10) calendar days after acceptance and furnish it before Closing. However, if the cost of obtaining the Certificate of Occupancy exceeds \$ _____, Seller shall not be obligated to provide the Certificate of Occupancy, and Buyer will be allowed either to receive a credit at Closing for the above amount, or to cancel this Contract by written notice to Seller, and any Deposit shall be returned to Buyer.

(D) Zoning Code Compliance. Unless the Property is a condominium, Seller represents to Buyer that the Property is zoned for use as a Condo and Townhouse and that the Property is in compliance with applicable zoning codes and ordinances.

(E) Condition of Property. Buyer agrees to purchase the Property and any items included in the purchase "**AS IS**" except as provided in paragraph 1(F), subject to reasonable use, wear, tear, and natural deterioration between now and the time of Closing. However, this paragraph shall not relieve Seller from furnishing a Certificate of Occupancy as called for in Paragraph 6(C) and/or Certificate(s) of Compliance as called for in Paragraph 4(E), if applicable.

(F) Gas, Mineral, Oil and Timber Rights. Seller represents that all gas, mineral, oil and timber rights will transfer with the Property except _____.

(G) Services. Seller represents that the Property is serviced by: ☒ Electric, ☐ Fuel Oil, ☒ Gas (Natural), ☐ Propane, ☒ Public Sewers, ☒ Public Water, ☐ Septic System, ☐ Well, ☐ Other _____.
 If propane is checked, Seller represents that the propane tank (check one box only) ☐ is not ☐ is owned by Seller and that there (check one box only) ☐ is not ☐ is an existing written contract to provide propane between the propane company and Seller.

7. CLOSING AND POSSESSION.

(A) Pre-Closing Walkthrough. Buyer shall have the right to walk through the Property within forty-eight (48) hours before the time of Closing to ensure that the Property is in the condition existing at the time of acceptance subject to reasonable use, wear, tear and natural deterioration between the date hereof and the Closing. Seller agrees that all utilities shall be on at that time. Seller shall continue to maintain the Property in the condition existing as of acceptance including, but not limited to, utility service continuation, lawn and landscaping care, and snow plowing.

(B) Closing Date and Place. Closing shall take place at the Monroe County Clerk's Office or at the offices of Buyer's lender on or before March 26, 2026 (the "Closing Date"). At any time after such specified date, any party who has completed its obligations under this Contract which are to be completed prior to Closing may notify the other party that time is of the essence to close (the "Time of Essence Notice") which Time of Essence Notice shall set forth a specific time for Closing on a day that is at least seven (7) calendar days after delivery of the Time of Essence Notice to such other party pursuant to Paragraph 9(D) below.

(C) Possession of Property.

- ☒ (1) Buyer shall have possession of the Property upon Closing, in broom-clean condition, with all keys to the Property delivered to Buyer at Closing.

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- ☐ (2) Seller shall have the right to retain possession for ____ calendar days after Closing at the cost of \$_____ per day inclusive of real property taxes and common charges, plus utilities, continuation of lawn, landscaping, pool, and snow maintenance, and refuse collection, and an escrow deposit by Seller of \$_____. At Closing, a key to the Property shall be delivered to Buyer. At delivery of possession to Buyer, the Property shall be in broom-clean condition and the remaining keys to the Property shall be delivered to Buyer.
- ☐ (3) Buyer shall have right of early possession for ____ calendar days prior to Closing at the cost of \$_____ per day inclusive of real property taxes and common charges, plus utilities, continuation of lawn, landscaping, pool, and snow maintenance, and refuse collection, and an escrow deposit by Buyer of \$_____. At possession, the Property shall be in broom-clean condition and a key to the Property shall be delivered to Buyer; the remaining keys shall be delivered to Buyer at Closing.

In the event of retained possession or early possession, the Parties shall enter into a written Pre-Closing Occupancy Agreement or Post-Closing Occupancy Agreement, the form of which shall be the Monroe County Bar Association's recommended form.

(D) Risk of Loss. Risk of loss or damage to the Property by fire or other casualty until transfer of title shall be assumed by the Seller. If damage to the Property by fire or such other casualty occurs prior to transfer, Buyer may cancel this Contract without any further liability to Seller and Buyer's Deposit is to be returned. If Buyer does not cancel but elects to close, then Seller shall transfer to Buyer any insurance proceeds, or Seller's claim to insurance proceeds payable for such damage.

8. TITLE MATTERS.

(A) Title and Related Documents; Condominium or Homeowner's Association Documents. Seller shall deliver at Seller's expense:

- (1) Not later than five (5) calendar days after acceptance of this Contract by Buyer and Seller, Seller shall order (i) an abstract of title (which abstract of title shall also evidence good and marketable title to all common areas owned by the Condominium or Homeowner's Association), fully guaranteed tax and U.S. Court searches, with a local tax certificate for Village or City taxes, if any (collectively the "Abstract") and (ii) an instrument survey map, certified and prepared to meet the Standards of the Monroe County Bar Association and Buyer's mortgage lender, if any (the "Survey"), unless the Property is a condominium in which event Seller shall only furnish a County Clerk certified copy of the filed condominium map. Both the Abstract and Survey shall be dated or re-dated after the date of acceptance, and Seller shall endeavor to deliver the Abstract and Survey along with the draft of the proposed deed to Buyer or Buyer's attorney within thirty (30) calendar days thereafter, but in any event, not later than fifteen (15) calendar days prior to the Closing Date in Paragraph 7. Seller will pay for such searches to and including the day of Closing; and
- (2) At the Closing, to Buyer, a properly signed and notarized, (i) Warranty Deed with lien covenant (or Executor's, Administrator's or Trustee's Deed, if Seller holds title as such), (ii) carbon monoxide detector and smoke alarm affidavits, (iii) documents required by law, (iv) documents required by Buyer's lender, provided there is no cost or liability to Seller, and (v) assignment of leases and transfer of security deposits, if any; and
- (3) At least fifteen (15) calendar days prior to the Closing Date (or sooner if otherwise required in this Contract), to Buyer or Buyer's attorney:
 - a) Copy of the latest financial statement of Homeowner's Association or Condominium;
 - b) Copies of the Declaration, By-Laws, Rules and Regulations, currently in effect, including all amendments;
 - c) Copies of the current or adopted budget and any other communications, information or directives regarding future budget, assessments, or other matters;
 - d) Statement from Condominium, Homeowner's or Community Association, or its managing agent, setting forth the present status of common charges or assessments against the Property;
 - e) If any alterations, improvements or additions have been made on or to the exterior of the Property, a statement from the secretary of the Association or the managing agent certifying that the same have been approved by the Board of Managers or Directors;
 - f) Name and address of insurance agent administering the master insurance policy;
 - g) Certificate of Waiver of Right of First Refusal from board of managers if required by Declaration;
 - h) Upon request, a copy of current management agreement;
 - i) Upon request, copy of title insurance policy on common areas;
 - j) If the sponsor has not transferred all lots or units to third Party purchasers, a copy of the current Offering Plan and all amendments; and
 - k) Copy of plans in Seller's possession showing the unit/Property.

(B) Marketability of Title. Seller shall convey good and marketable title to the Property in fee simple, free and clear of all liens and encumbrances, subject to Condominium or Homeowner's Association Declaration, By-Laws, Rules and Regulations, and Current Special Assessments for which Buyer is responsible pursuant to Paragraph 1C. and all Post-Contract Assessments. The Parties acknowledge and agree that good and marketable title to the Property, free and clear of all liens and encumbrances, means, without limit, that all gas, mineral, oil and timber rights will transfer with the Property to Buyer except as otherwise provided in Paragraph 6(F) above. However, Buyer agrees to accept title to the Property subject to: (a) restrictive covenants of record common to the tract or subdivision of which the Property is a part, provided these covenants have not been violated or the time for objection to any violation has expired, (b) public utility easements within fifteen (15) feet of lot lines which do not interfere with any existing improvements on the Property or with any improvements that Buyer may construct in compliance with all present restrictive covenants of record and zoning and building codes, and (c) except for waterfront properties, fences deviating from the actual Property line one foot or less, provided the fence placement does not impair access to the Property from a right of way or cause the Property to be in violation of any restrictive covenant, easement or agreement of record or of any building, zoning or subdivision code. Seller and Buyer agree that potential objections revealed by the Survey furnished pursuant to Paragraph 8(A) above shall be resolved pursuant to the "Suggested Title Standards for Treating Discrepancies Revealed by Surveys" of the Monroe County Bar Association.

(C) Objections to Title. If Buyer raises a valid written objection to Seller's title which indicates that the title to the Property is unmarketable, then Seller may cancel this Contract upon written notice to Buyer, and the Deposit shall be returned to Buyer. However, if Seller: (a) is able to cure the objection on or before the Closing or (b) is able to insure the title objection and Buyer is willing to accept insurable title, then this Contract shall continue, subject to the Seller curing the title objection and/or providing insurable title at Seller's expense. If Seller fails to cure the title objection on or before the Closing, or if Buyer is unwilling to accept insurable title, Buyer may cancel this Contract upon written notice to Seller and the Deposit shall be returned to Buyer.

9. BROKERS & MISCELLANEOUS.

(A) Real Estate Broker.

☒ (a) The Parties agree that RPP/Sherri Salvato High Falls Sotheby's brought about this purchase and sale.
☐ (b) It is understood and agreed by Buyer and Seller that no broker brought about this purchase and sale.

(B) Attorney Disclaimer. In participating in the transaction, an attorney renders no opinion whatsoever as to the value of the Property. Unless an attorney has actual knowledge to the contrary, it should not be inferred from an attorney's participation in the transaction that the attorney knows, or is aware of, the facts behind the history of the price negotiations between the Parties.

(C) Responsibility of Persons Under This Contract; Non-Assignability. If more than one person signs this Contract as Buyer, each person and any Party who takes over that person's legal position will be responsible for keeping the promises made by Buyer in this Contract. If more than one person signs this Contract as Seller, each person or any party who takes over that person's legal position, will be fully responsible for keeping the promises made by Seller. However, this Contract is personal to the Parties and may not be assigned by either without the other's consent.

(D) Notices.

(1) In General.

- (i) Notices under this Contract shall be in writing and deemed delivered upon receipt. Except as otherwise provided in Paragraph 9(D)(2) below, notices under this Contract may be made by a Party or by the attorney or the listing/selling agent for such Party and may be received by the other Party or by the attorney or the listing/selling agent for such other Party. Seller and Buyer agree that notices under this Contract may be delivered to any address, fax number, and/or e-mail set forth on the Administrative Information page of this Contract for a Party, the attorney for a Party, or the listing/selling agent for a Party, as applicable.
- (ii) Delivery of notices under this Contract shall be made by personal delivery, overnight courier, first class mail, fax, or email, except as otherwise provided in Paragraph 9(D)(2) below.
- (iii) If delivery is made by personal delivery, the notice(s) delivered shall be deemed received on the date delivered. If delivery is made by overnight courier or first-class mail, the notice(s) delivered shall be deemed received one calendar day, excluding Saturdays, Sundays and public holidays, following the date upon which the notice(s) are deposited with the overnight courier service with delivery charges prepaid or charged to sender's account or with the postal service with required postage affixed. If delivery is made by fax, the notice(s) transmitted shall be deemed received on the date the sender receives confirmation from the recipient's equipment that the entire transmission has been received. If delivery is made by e-mail, the notice(s) transmitted shall be deemed received on the date the sender's e-mail is located in the sent e-mail folder of the sender, except as otherwise provided in Paragraph 9(D)(2) below.

(2) Special Notices. Any (i) Time of Essence Notice, (ii) notice of cancellation or termination of the Contract, (iii) bump notice of Seller, (iv) Buyer's notice of removal of sale and transfer of title contingency, or (v) Buyer's notice of preservation of Buyer's transfer of title contingency made under this Contract (each, a "Special Notice") may only be made by a Party or the attorney for such Party and may only be received by the other Party with a copy to such other Party's attorney and to the listing/selling agent of such other Party, if designated on this Contract. Further, if any Special Notice is delivered by e-mail, then a true and complete copy of the e-mailed Special Notice shall also be mailed by first class prepaid mail within one calendar day, excluding Saturdays, Sundays and public holidays, following the date of the e-mail, and the e-mailed Special Notice shall be deemed received on the date the sender's e-mail is located in the sent e-mail folder of the sender, provided the required mailing by first class prepaid mail is completed.

(E) Entire Contract; Miscellaneous. This Contract when signed by both Buyer and Seller will be the record of the complete agreement between the Buyer and Seller concerning the purchase and sale of the Property. This Contract may be signed in counterparts. No oral agreements or promises will be binding. Seller's representations in this Contract shall not survive after Closing except the representations of Seller set forth in Paragraphs 1 and 2. If any provision of this Contract is rendered invalid or unenforceable, it shall not affect the validity or enforceability of the remaining provisions. This Contract shall be construed, enforced and interpreted under the laws of the State of New York, without regard to principles of conflicts of laws.

(F) Electronic Signatures. The Parties agree and consent that this Contract and every demand, notice and objection given under this Contract, may be signed and initialed in any manner permitted by New York State law, including the Electronic Signatures and Records Act and applicable regulations.

(G) Addenda. The following Addenda are incorporated into and attached to and made a part of this Contract:

- | | | |
|---|--|--|
| ☐ Agricultural Districts/Farming Activity Disclosure | ☐ Personal Property Agreement | ☐ Uncapped Natural Gas Well |
| ☐ All Parties Agreement (FHA/VA) | ☐ Property Inspection | ☐ Disclosure |
| ☐ Contingency Addendum | ☐ Rented Property | ☐ Utility Surcharge |
| ☐ Electric Availability | ☐ Sale & Transfer of Title | ☐ Wayne County Disclosure |
| ☐ Home Warranty | ☐ Short Sale Approval | ☐ Notice for all Residential Property |
| ☐ Lead Compliance | | ☐ Well and Septic System |

☒ Other: Escalation Form, Cooperating Broker Compensation with Listing Broker Form

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Braintree Crescent

Penfield

NY

14526

CS
Seller's Initials

Buyer's Initials

OP
Buyer's Initials

10. OTHER TERMS. *(If blank, this paragraph is not applicable)* In the event of a conflict between the provisions of this paragraph and the provisions of any other paragraph of this Contract, the provisions of this paragraph will control.

Seller to pay and/or authorize listing agent to pay the buyer broker, High Falls Sotheby's International Realty a 3% broker fee of the final agreed purchase price at closing.

Buyer agrees fireplace and appliances as is.

11. LIFE OF OFFER. This offer shall expire on February 24, 2026, at 10:00 a. m.

☒ **PROPERTY INSPECTION DECLINED.** Buyer has reviewed the terms and conditions of the Property Inspection Addendum and Buyer elects not to conduct a Property Inspection.

 Olivia Pitton 02/24/2026
Buyer Olivia Pitton Date Buyer Date

☒ **ACCEPTANCE OF OFFER BY SELLER.** Seller accepts the offer of Buyer and agrees to sell on the terms and conditions set forth in the Contract.

☐ **COUNTEROFFER BY SELLER.** Seller agrees to sell the Property in accordance with the terms and conditions of the Contract, except as amended and modified as follows: **(attach additional sheets if necessary)**

In any conflict of terms and conditions between this counteroffer and the Contract, the terms and conditions of this counteroffer shall prevail.

This counteroffer shall expire on _____, 20_____, at _____ m.

 Catherine A Shepard as Executor 02/24/26
Seller Date Seller Date

☐ **ACCEPTANCE OF COUNTEROFFER BY BUYER.** Buyer accepts the offer of Seller and agrees to sell on the terms and conditions set forth in the Contract.

Buyer Date Buyer Date

15 Braintree Crescent Penfield NY 14526

 CS
Seller's Initials

Buyer's Initials

 OP

ADMINISTRATIVE INFORMATION

Property Address: 15 Braintree Crescent Penfield NY 14526 MLS# R1662847

Estate of Adele Elizabeth Shepard

Seller
(Executor is Catherine Shepard)

Seller

Address

City, State, Zip

347-510-7507

Telephone No.

cashep42@yahoo.com

Email address

Steve Pheterson

Seller's Attorney

Address

City, State, Zip

Telephone No. Fax

stevep@psnlawgroup.com

Email address

RE/MAX Realty Group

Listing Broker

10391200881

NY License No.

101 Canal Landing Blvd Suite One

Address

Rochester NY 14626

City, State, Zip

585-719-3500 585-719-9961

Phone Fax

Brian M Timmons

Listing Agent

10401299345

NY License No.

585-354-0367 585-719-9961

Phone Fax

585-354-0367 50543

Cell Public ID#

TimmonsREALTOR@gmail.com

Email Address

HOA Manager Crofton

Olivia Pitton

Buyer

Buyer

Address

City, State, Zip

585-899-0344

Telephone No.

opitton4@gmail.com

Email Address

Heather Rogers

Buyer's Attorney

99 Garnsey Road

Address

Pittsford, NY 14534

City, State, Zip

585-419-8637 585-419-8801

Telephone No. Fax

Hrogers@harrisbeachmurtha.com

Email address

High Falls Sotheby's International

Selling Broker

10991239169

NY License No.

1655 Monroe Avenue

Address

Rochester NY 14618

City, State, Zip

585-623-1516

Phone Fax

Robert Piazza Palotto/Sherri Salvato

Selling Agent

10401366282

NY License No.

585-623-1565 585-279-8225

Phone Fax

585-259-7247 13217

Cell Public ID#

sherri.salvato@highfallssir.com

Email address

HOA Phone 585-248-3840